

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 08/19/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

Notice is hereby given that the Hon. Benjamin T. Reyes II will be out of court during the week of August 17, 2026. The Hon. Charles S. Treat (Ret.), sitting on assignment, will be presiding over the Law & Motion Calendar for Department 16 on August 19, 2026.

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-01450
CASE NAME: JEANIE BURTON VS. JOINN BIOLOGICS US INC.
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY PLAINTIFF'S COUNSELS BRADLEY GROMBACHER LLP AND CAPSTONE LAW PC SHOULD NOT BE HELD IN CONTEMPT FOR FAILING TO COMPLY WITH THE COURT'S ORDER TO PREPARE AND FILE A COMPLIANCE STATEMENT. NO REMOTE APPEARANCE IS AUTHORIZED FOR THIS HEARING.
FILED BY:
TENTATIVE RULING:

See Line 5.

2. 9:00 AM CASE NUMBER: C23-02586
CASE NAME: FLORENCE DROCAN VS. FULL CIRCLE OF CHOICES
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT HOLD PLAINTIFF'S COUNSEL KANE MOON IN CONTEMPT FOR FAILING TO COMPLY WITH THE COURT'S ORDER TO PREPARE AND FILE A COMPLIANCE STATEMENT.
FILED BY:
TENTATIVE RULING:

This order to show cause is discharged. No appearance is required.

3. 9:00 AM CASE NUMBER: C24-03021
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

This CMC trails the hearing for Line 11. Since Line 11 is unopposed, this CMC is vacated. No appearance is required on August 19, 2026.

4. 9:00 AM CASE NUMBER: C25-01221
CASE NAME: KOREY DEHART VS. DOES 1 TO 100
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

This CMC trails the hearing for Line 13. Unless the parties believe they can settle this case on their own, the Court sets a mediation deadline of the end of January 2026, and sets a further CMC for February 18, 2027 at 8:30 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-01450
CASE NAME: JEANIE BURTON VS. JOINN BIOLOGICS US INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL / ACCOUNTING**
FILED BY:
TENTATIVE RULING:
Summary

The Court has reviewed the compliance statement and declaration prepared by Stephanie Moline of ILYM Group, Inc. regarding the disbursement of settlement funds. The Court finds that the Parties have complied with the order for final approval and judgment. No appearance is required at the August 19, 2026 hearing.

6. 9:00 AM CASE NUMBER: C23-02586
CASE NAME: FLORENCE DROCAN VS. FULL CIRCLE OF CHOICES
*HEARING ON MOTION IN RE: COMPLIANCE HEARING

FILED BY:

TENTATIVE RULING:

Summary

This hearing is vacated. Upon further review of the Declaration of Makenna Snow of ILYM Group filed on July 28, 2026, the Court finds that the Parties are in compliance with the Final Approval of the Class Action Settlement. No appearance is required at the August 19, 2026 hearing.

7. 9:00 AM CASE NUMBER: C23-02906
CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE
*HEARING ON MOTION IN RE: VACATE RELIANCE ON PURPORTED SETTLEMENT, RESTORE LEAVE TO FILE AMENDED XC
FILED BY: BOAZ, ROGER

TENTATIVE RULING:

Summary

Defendant Bryan Dove, in *propria persona*, files this Motion to vacate Reliance on Purported Settlement. This case was dismissed without prejudice, and the Court retains jurisdiction only to enforce the settlement. The Court is without jurisdiction to hear this motion. This motion is **denied**.

8. 9:00 AM CASE NUMBER: C23-02910
CASE NAME: JESUS TORRES VS. JORODA, INC.
*FURTHER CASE MANAGEMENT CONFERENCE ** TRAILING THE MOTION **
FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 20. Unless the parties believe they can settle this case on their own, the Court sets a mediation deadline of the end of January 2026, and sets a further CMC for February 18, 2027 at 8:30 a.m.

9. 9:00 AM CASE NUMBER: C24-01961
CASE NAME: WILLIAM DEDMAN VS. NATALIA HOWARD
*HEARING ON MOTION FOR DISCOVERY FOR DISCOVERY SANCTIONS FOR DEFRAUDING THE CRT
FILED BY: HOWARD, NATALIA

TENTATIVE RULING:

Court continues this hearing, *sua sponte*, to October 14, 2026 at 9:00 a.m. No appearance is required at the hearing on August 19, 2026.

10. 9:00 AM CASE NUMBER: C24-01961
CASE NAME: WILLIAM DEDMAN VS. NATALIA HOWARD
*HEARING ON MOTION IN RE: TO TAX COSTS
FILED BY: HOWARD, NATALIA
TENTATIVE RULING:

A notice of appeal has been filed by Defendant Howard in this case. No stay has been issued. The Court continues this hearing, *sua sponte*, to October 14, 2026 at 9:00 a.m. No appearance is required at the hearing on August 19, 2026.

11. 9:00 AM CASE NUMBER: C24-03021
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
*HEARING ON MOTION IN RE: STAY ALL CIVIL PROCEEDINGS PENDING RELATED CRIMINAL PROCEEDINGS
FILED BY: ABUKESHEK, KHALED AHMAD
TENTATIVE RULING:

Defendant Khaled Ahmad Abukeshek's Motion to Stay All Civil Proceedings pending the related criminal action is unopposed and is granted. This matter is stayed. The Court will execute the proposed order lodged on March 9, 2026. No appearance is required at the hearing on August 19, 2026.

12. 9:00 AM CASE NUMBER: C25-00909
CASE NAME: JANE DOE S.V. VS. ANTHONY VERTOLOMO
*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE
FILED RE: JOHN O MILLER, III
FILED BY: WATCHTOWER BIBLE AND TRACT SOCIETY OF NEW YORK, INC.,
TENTATIVE RULING:

The application of John O. Miller III for admission pro hac vice is granted.

13. 9:00 AM CASE NUMBER: C25-01221
CASE NAME: KOREY DEHART VS. DOES 1 TO 100
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: VAN DE POL ENTERPRISES, INC.
*TENTATIVE RULING

Cross-defendant Van De Pol Enterprises, Inc. demurs to the cross-complaint of defendant and cross-complainant M.C. LLC dba Jiffy Lube, sued as M.C. LLC. Cross-Defendant challenges all six causes of action asserted by Cross-Complainant in the Cross-Complaint.

For the reasons discussed below, the Court **SUSTAINS** Cross-Defendant's demurrer to the Cross-Complaint in full, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC 3.1320(g).)

Although the Court provides a detailed analysis, this is really a quite straightforward, simple matter. It has been made complicated, frankly, by the unprofessional overlawyering of both sides, costing their respective clients needless money, and costing themselves and the Court needless labor. The heart of the problem is simple: Both sides agree that the Cross-Complaint is barred unless it alleges a pre-injury indemnification agreement. The agreement alleged in the Cross-Complaint is post-injury. On one side, Cross-Complainant has made an editorial or clerical error in the date of the agreement it adduces. On the other hand, Cross-Defendant is apparently fully aware that Cross-Complainant can allege a pre-injury agreement; the 2024 agreement alleged is, apparently, a periodic renewal of a pre-2024 agreement that was in place at the time of the injury.

All that was needed here, therefore, was a phone call: “Hey, you alleged the wrong agreement, the renewal rather than the original.” “Did I? Okay, I’ll fix it. I’ll send over a stip.” Instead, Cross-Defendant just ignores that the older agreement can be alleged; and Cross-Complainant earnestly pretends it has already done so.

Everything that follows is the result of the lawyers insisting on a long, overdone demurrer instead of just fixing what both of them knew to be a minor and obvious error. And it follows that, although the lawyers formally met their meet-and-confer obligation, substantively they flunk that test spectacularly.

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Preliminary Points

No judicial notice is necessary as to pleadings in the Court's file.

The Court disregards the Ghantous declaration as attempting to adduce facts not alleged in the cross-complaint. That is not proper on a demurrer.

Background

In the complaint in this matter filed by Plaintiff Korey Ray Dehart, Plaintiff alleges that on May 18, 2023, he was an invitee at 2099 Camino Ramon, San Ramon, California, which is a premises Plaintiff alleges was owned, leased, operated, maintained and/or otherwise controlled by Cross-Complainant. (Complaint, ¶¶ 8, 12, 13.) On that date, Plaintiff slipped and fell and suffered serious injuries, due to liquid or oil or grease that was on the floor causing it to be a slip and fall hazard. (*Id.* at ¶¶ 18, 19.) Plaintiff is suing Cross-Complainant for negligence and premises liability and is seeking more than \$35,000. (Complaint, pp. 4-7.)

The Cross-Complaint, filed on December 16, 2025, alleges that Cross-Complainant is suing Cross-Defendant because it believes that Cross-Defendant is legally responsible for the damages, if any, alleged by Plaintiff in the underlying action. (Cross-Complaint, p. 2.) The Cross-Complaint alleges the following claims against Cross-Defendant: (1) express indemnity; (2) equitable indemnity; (3) contribution; (4) negligence/negligence per se; (5) declaratory relief; and (6) apportionment of fault. (Cross-Complaint, pp. 2-10.)

Cross-Complainant seeks express indemnity, equitable indemnity, apportionment, contribution, equitable contribution, compensatory damages, attorney fees, costs, interest, and a declaration as to the rights, duties, and responsibilities of Cross-Complainant and Cross-Defendants. (Cross-Complaint, pp. 10-11.)

Discussion

First Cause of Action for Express Indemnity

Cross-Defendant argues that Cross-Complainant is unable to assert express indemnity because the agreement it relies on was executed on January 1, 2024, which was after the Plaintiff's May 18, 2023 injuries, and that Labor Code section 3864 thus bars this claim. (Demurrer MPA, p. 5.)

Cross-Complainant argues that Cross-Defendant entered into a pre-injury agreement that bars it from the exclusive remedy provisions of the Labor Code. (Opposition, pp. 4-6.) Cross-Complainant's opposition relies on exhibits 1, 2, and 3 to its declaration in support of the Opposition for its argument. (*Ibid.*) These exhibits include a tender of defense and indemnity letter, a response to the tender request, and some meet and confer emails. (Ghantous Decl. ISO Opposition, Exhs. 1-3.)

Cross-Defendant contends that Cross-Complainant's reliance on extraneous documents and facts not pleaded in the Cross-Complaint is improper and should be disregarded and that the Cross-Complaint does not allege a pre-injury written agreement, so it fails to satisfy the limited exception to Labor

Code section 3864. (Reply, pp. 2-4.)

Labor Code section 3864, provides:

If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury.

(Lab. Code, § 3864.)

Here, Plaintiff was injured while employed for Cross-Defendant and the Cross-Complaint only references an agreement that was executed on January 1, 2024, which is subsequent to the date Plaintiff was injured, May 18, 2023. (Cross-Complaint, ¶¶ 3, 8.)

Cross-Complainant's attempt to rely on meet and confer correspondence and letters sent between the parties is unavailing as those are outside the scope of what a court considers when deciding a demurrer. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7 [Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice."]) Here, the Court is unable to rely on the declaration of Karyne T. Ghantous in support of the Opposition as it contains documents and facts outside the Cross-Complaint or matters that may be inferred or judicially noticed. Cross-Complainant asserts that the meet and confer letters may be judicially noticed and that other letters it has attached to the declaration may be judicially noticed (Opposition, pp. 3-4), however, Cross-Complainant has not requested judicial notice of any documents in connection with its opposition and the Court is not aware of any authority that would allow it to consider meet and confer correspondence or indemnity requests and responses that are not attached to the Cross-Complaint.

Based on the allegations of the Cross-Complaint, which allege a January 1, 2024 express indemnity agreement, and the fact that Plaintiff was injured in May of 2023, Cross-Complainant's express indemnity claim is barred due to Section 3864 of the Labor Code.

In light of the analysis above, Cross-Defendant's demurrer to Cross-Complainant's first cause of action for express indemnity is SUSTAINED.

Second Cause of Action for Equitable Indemnity, Third Cause of Action for Contribution, Sixth Cause of Action for Apportionment of Fault

Cross-Defendant argues that "Section 3864 unequivocally forecloses any recovery by MC for equitable indemnity from VDP." (Demurrer MPA, p. 6.) Cross-Defendant further contends that "Section 3864 clearly bars MC from recovering contribution from VDP." (*Id.* at p. 7.) Regarding apportionment of fault, Cross-Defendant argues that "[b]ecause section 3864 precludes a third party tortfeasor from

seeking indemnification and contribution from an injured employee's employer, it also bars the third party from seeking apportionment from the employer under the doctrine of comparative negligence." (*Id.* at p. 9.)

Cross-Complainant does not offer argument on specific causes of action, but argues that if there is a pre-injury agreement, like there is here, then the claims outside of the claim for express indemnity can go on. (Opposition, pp. 6-10.) It further argues that the purpose of Section 3864 is to eliminate a third party's right to implied or equitable indemnity against an employer when no contractual relationship exists, but with a pre-injury agreement in play, the statute has no application at all. (*Id.* at p. 7.) Cross-Complainant also argues that Section 3864 "cannot function as a grounds for demurrer."

First, Section 3864 can function as the grounds for a demurrer. (*Nielsen Construction Co. v. International Iron Products* (1993) 18 Cal.App.4th 863, 869 ["We conclude the written indemnity agreement was not timely executed pursuant to section 3864 because the written agreement was not signed by both parties before the injury occurred. The trial court properly sustained International's demurrer without leave to amend. . .".])

Second, Labor Code section 3864 is clear. "If an action as provided in this chapter prosecuted by the employee . . . against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury." (Lab. Code, § 3864.) Here, an employee of Cross-Defendant, Plaintiff, alleges he was injured while working and has sued third party, Cross-Complainant, for damages. (Complaint, pp. 1-7.) Cross-Complainant has now sued Plaintiff's employer seeking reimbursement for any possible damages Plaintiff may obtain from it. (Cross-Complaint, pp. 1-11.) All of Cross-Complainant's claims seek some form of payment to it assuming Plaintiff's lawsuit is successful. This is plainly governed by Labor Code section 3864. Absent a written agreement executed prior to the injury, claims such as Cross-Complainant makes here are barred. (Lab. Code, § 3864.) Cross-Complainant, in a seeming admission that the Cross-Complaint cannot stand on its own, has submitted with its opposition a declaration containing communications, letters, and evidence that is beyond the scope of what this Court can consider on a demurrer. (Ghantous Decl. ISO Opposition, ¶¶ 1-7, Exhs. 1-3.) Because the Cross-Complaint only alleges an executed agreement dated January 1, 2024, and Plaintiff's injury occurred in 2023, Cross-Complainant's attempts to be reimbursed for any judgment must fail.

In light of the analysis above, Cross-Defendant's demurrer to the Cross-Complaint's second cause of action for equitable indemnity, third cause of action for contribution, and sixth cause of action for apportionment of fault is SUSTAINED.

Fourth Cause of Action for Negligence/Negligence Per Se

"The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671, italics and boldface added.) "The elements of a cause of action for premises

liability are the same as those for negligence: duty, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.)

In addition to the reasons identified above as to the second, third and sixth causes of action, this claim also fails because Cross-Complainant has not alleged an injury.

Cross-Defendant’s demurrer to Cross-Complaint’s fourth cause of action for negligence-negligence per se is SUSTAINED.

Fifth Cause of Action for Declaratory Relief

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another . . . in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.

Here, in addition to the reasons identified above as to the second, third and sixth causes of action, this claim also fails because Cross-Complainant is not seeking a declaration of its rights or duties under any written instrument or contract but rather seeks an adjudication as to the respective fault of the parties as to Plaintiff’s claims. (Cross-Complaint, ¶¶ 29, 32 [“Cross-Complainant requests an adjudication and determination of the respective proportions of percentage of fault of all parties to this action, if any.”].) This goes beyond just analyzing a written instrument or contract and determining respective rights and responsibilities and would involve adjudication of Plaintiff’s case in chief.

Cross-Defendant’s demurrer to Cross-Complaint’s fifth cause of action for declaratory relief is SUSTAINED.

Ruling

The Court **SUSTAINS** Cross-Defendant’s demurrer to the Cross-Complaint in full, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

14. 9:00 AM CASE NUMBER: C25-01385

CASE NAME: AMANDA KOTCH BERRY VS. FCA US LLC

***HEARING ON MOTION IN RE: FOR AN ORDER TO ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6**

FILED BY: KOTCH BERRY, AMANDA

TENTATIVE RULING:

Before the Court is Plaintiff Amanda Kotch Berry's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure § 664.6. ("Motion").

Factual Background

Plaintiffs filed her initial complaint on May 15, 2025. Defendant FCA US LLC filed an Answer on June 202, 2025. On February 3, 2026, Plaintiff filed a notice of conditional settlement of the case. Thereafter, on April 24, 2026, Plaintiff filed the instant motion seeking to enforce the parties settlement agreement.

Overview of Section 664.6

Pursuant to the Code of Civil Procedure section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. (Code Civ. Proc., §664.6(a).)

California courts have interpreted section 664.6 as creating "a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met." (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429).

"A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 numerous citations omitted.) "The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to...." (*Ibid.*) "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (*Ibid.*)

"The statutory language makes clear, however, that a party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute." (*Hines, supra*, 167 Cal.App.4th at 1185.) Instead, the Court is authorized to "enter a judgment pursuant to the settlement regardless of whether [a party's] nonperformance of [their] settlement obligations [were] excused." (*Ibid.*)

Analysis

The Complaint alleged various causes of action under the Song-Beverly Consumer Warranty Act – i.e.

it was a 'lemon law' suit. The Settlement Agreement, executed by Plaintiff on January 20, 2026, included the following general terms:

1. FCA to pay off the remaining loan balance on the vehicle in the amount of \$44,687.11.
2. FCA to issue a check in the amount of \$31,401.08 to Plaintiff at the time of the return of the subject vehicle.
3. FCO to issue check in the amount of \$10,000 to Plaintiff's counsel, with payment to be "expedited to the attorney following completion of the return of the Subject Vehicle to the manufacturer or its agents.'
4. FCA to pay civil penalties totaling \$58,911.81 in a check payable to Plaintiff's counsel's trust account. This payment was to be made "within one business day following completion of the return of the Subject Vehicle..."

All the above were to be completed within 60 days from the date of acceptance of the Settlement Agreement by Plaintiff. (Flores Decl. Ex. A.) The Settlement Agreement was signed by Plaintiff on January 20, 2026. As such, the 60-day deadline was March 21, 2026.

Exhibit A confirms that the parties had a valid, signed settlement agreement. It also includes detailed specific terms that each party was required to perform. Plaintiff's counsel presents a comprehensive timeline of what occurred and their efforts to complete the settlement per its terms – and FCA's complete failure to perform.

On March 2, Plaintiff's counsel sent an email to defense counsel seeking information regarding the upcoming deadline and scheduling the vehicle surrender. (Flores Decl. ¶ 5.) On March 9, counsel emailed FCA's repurchase coordinator James Harris to advise of the upcoming deadline and to coordinate the vehicle surrender. (¶ 6.) Mr. Harris responded on March 11 indicated that the checks had been requested and that a scheduling coordinator would reach out to arrange the vehicle surrender. (¶ 7.)

On March 19, Plaintiff's counsel followed up with Mr. Harris, who indicated that the checks were in and that scheduling would reach out. (¶ 9, Ex. B.) On March 23, two days after the deadline, Plaintiff's counsel contacted FCA's third-party surrender agent to follow up on scheduling the surrender of the vehicle. (¶ 11.) Plaintiff's counsel reached out to Mr. Harris on March 24 regarding the failure to schedule the surrender. (¶ 12.) Mr. Harris responded the next day indicating the scheduling was having difficulty securing a surrender dealership. (¶ 13.)

Plaintiff's counsel reached out to Mr. Harris again on March 27 and 30, noting that the ongoing delays were causing significant harm to Plaintiff, who needed the settlement funds to purchase a replacement vehicle. (¶ 14-15.) On April 1, Plaintiff's counsel emailed Mr. Harris to inform him that they had arranged to have the Subject Vehicle towed to Stoneridge CDJR, which had agreed to accept the surrender. (¶ 16.) On April 3, counsel again emailed Mr. Harris noting that they were in breach and demanded that FCA complete the settlement by April 10. (¶ 17.) Plaintiff's counsel again followed up on April 13 and 14 about the failure of FCA to make payments under the Settlement Agreement.

As of the date of the motion, no payments had been received.

Defendant FCA filed a one page “Opposition” that essentially admits that it has failed to comply with the terms of the Settlement Agreement. Instead, it argues that it has “has consistently worked toward completing the terms of the settlement agreement,” without explanation. In support is a declaration from FCA’s counsel indicating that FCA ‘is working diligently to comply in full with its obligations under the settlement agreement.’ He does not explain what that means or how he came about that knowledge. There is no declaration from anyone at FCA explaining why the payments have not been made or why they were unable to schedule the surrender of the vehicle but instead made it necessary for Plaintiff’s counsel to find a location to tow the Subject Vehicle.

Ms. Flores’s declaration indicates that on March 19, 2026, James Harris – FCA’s repurchase coordinator – advised that the “checks were in” and scheduling would reach out to coordinate surrender of the vehicle. (¶ 9.) Plaintiff’s counsel was then required to find a location to surrender the vehicle. That occurred on April 1, 2026. As of the date of the opposition, FCA has failed to make any payments despite the indication that the checks were already available in mid-March. There is no explanation for this delay. Notably, there is no word from Mr. Harris explaining why he said the checks were “in” on March 19, but to date they have not been provided to Plaintiff’s counsel.

FAC and its counsel’s actions – or more aptly inactions – are even more glaring in light of this Court’s order shortening time on the hearing of this motion. In that Order, the Court indicated that “counsel are ordered to meet and confer to resolve the issue of settlement payments by Zoom or in-person no later than 10 days from this order....” That order was issued on April 30 – meaning counsel were required to meet and confer by May 10. Plaintiff’s counsel filed a declaration on May 11 indicating that she reached out to FCA’s counsel on May 4 seeking a time to discuss. Defense counsel responded but did not provide dates, times, or availability to meet and confer. Plaintiff’s counsel then followed up on May 5 and 7 seeking compliance with this Court’s order. Defense counsel never responded.

The Court’s April 30 Order noted: “Failure to comply will result in this court issuing an OSC re contempt.” Defense counsel should keep an eye out for the OSC.

Mandatory Penalties and Attorney Fees

Plaintiff also seeks penalties pursuant to Code of Civil Procedure section 871.27 due to FCA’s failure to perform. Code of Civil Procedure section 871.27 provided, in relevant part, that a defendant “shall promptly process any agreed-upon motor vehicle restitution ... and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the buyer or lessee’s counsel.” (*Id.* at (g)(2).) The failure to do so “shall result in a mandatory penalty of fifty dollars (\$50) per day until the settlement is completed, unless the parties stipulate otherwise.” (*Ibid.*)

In addition, the Settlement Agreement indicates that in the event of a breach, the prevailing party “shall be entitled to recover reasonable attorney’s fees and costs incurred in the enforcement of this agreement.” (Flores Decl. Ex. A.) Plaintiff contends this applies at this stage.

“[A] court’s power to make factual determinations under section 664.6 is generally limited to whether the parties entered into a valid and binding settlement agreement.” (*Viejo Bancorp, Inc. v. Wood*,

(1989) 217 Cal.App.3d 200, 209 fn. 4 citing *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The power to make such factual determinations does not extend “to whether one party had breached the terms of the agreement.” (*Ibid.*) “Judgment may be entered under section 664.6 whether the parties are complying with the terms of the agreement or whether they are not.” (*Ibid.*) Disputes regarding whether a party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

In other words, under a 664.6 motion the Court is limited to determining whether a valid settlement agreement was entered into and, if so, entering a judgment that pursuant to the terms of the settlement. (*Hines*, supra, 167 Cal.App.4th at 1182.) Not only can it not determine if one party is a ‘prevailing party,’ but it cannot award the penalties sought pursuant to a motion under section 664.6.

“Under section 664.6, the [parties are] entitled to judgment ‘pursuant to the terms of the settlement’ [cite], **and nothing more.**” (*Machado*, supra, 39 Cal.App.5th at 792 emphasis added.) The Court does not, and cannot, make substantive determinations as to whether any party thereto has breached that agreement. (See e.g. *Viejo Bancorp, Inc.*, supra, 217 Cal.App.2d at 209 fn. 4.)

While the Court agrees that the statutory penalties outlined above are available, the awarding of the full amount will need to be decided at a later date. The Court strongly urges FCA to work with Plaintiff’s counsel to resolve this matter promptly to avoid additional penalties and fees to which Plaintiff may be entitled.

Conclusion

The Court **grants** Plaintiff’s motion to enter judgment according to the terms of the Settlement Agreement. Plaintiff shall submit the proposed form of judgment.

15. 9:00 AM CASE NUMBER: C25-02014
CASE NAME: DAVID VILLA VS. FUEGO BAR AND MEXICAN GRILL, LLC,
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: VILLA, DAVID TORO
TENTATIVE RULING:

Plaintiff’s motion for leave to file a second amended complaint is unopposed, and it is **granted**. This should have been handled by stipulation.

16. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING IN RE: FOR ORDER TO SHOW CAUSE RE: CONTEMPT FOR SHANNA FARRELL'S FAILURE TO PAY COURT-ORDERED SANCTIONS
FILED BY:
TENTATIVE RULING:

The ex parte application for a contempt order is **denied**. Neither contempt nor criminal proceedings are an appropriate remedy for a failure to pay money. Indeed, granting the motion would result only in an order to pay more money. Moreover, other than pointing out that the responding party

continues to participate in the litigation, applicants make a scant showing at best of ability to pay. The applicants should pursue more effective means of collecting a court order.

Note that the case is also set for a settlement conference this afternoon.

17. 9:00 AM CASE NUMBER: MSN21-0445

CASE NAME: SWIFT FINANCIAL VS BAY AREA PUBLIC SAFETY

***HEARING ON MOTION IN RE: AMEND JUDGMENT CCP 187 OR IN THE ALTERNATIVE TO AMEND THE JUDGMENT TO ADD NON-PARTY AUTHORITY PATROL, INC. AS AN ALTER EGO/SUCCESSOR
FILED BY: SWIFT FINANCIAL, LLC**

TENTATIVE RULING:

Plaintiff Swift Financial, LLC moves under CCP section 187 to amend the judgment to add Authority Patrol, Inc. as a judgment debtor, contending that Authority Patrol is the alter ego of defendant and judgment debtor Bay Area Public Safety, Inc. The motion was properly served on Authority Patrol, which has not filed any opposition. The motion is **granted**.

The authority provided to the courts by Code of Civil Procedure section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor. (*Dow Jones Co. v. Avenel* (1984) 151 Cal.App.3d 144, 148 [198 Cal. Rptr. 457].) In doing so, the court is amending the judgment to add the real judgment debtor. (*Id.* at p. 149.) To prevail in a motion to add judgment debtors, WSI must show that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (*Relentless, supra*, 222 Cal.App.4th at pp. 815–816.)

Triyar Hospitality Management, LLC v. WSI (II)-HWP, LLC (2020) 57 Cal.App.5th 636, 641.

Factors for the court to consider include identical equitable ownership, comingling of funds, use of the same offices, disregard of formalities, and use of one entity as a mere shell for the affairs of another. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc., supra*, 217 Cal.App.4th at pp. 1108–1109.) An important factor in determining alter ego liability is that a corporate entity is so undercapitalized that it is likely to have no sufficient assets to meet its debts. (*Automotriz etc. v. Resnick* (1957) 47 Cal.2d 792, 796–797 [306 P.2d 1].)

Butler America, LLC v. Aviation Assurance Co. (2020) 55 Cal.App.5th 136, 146.

The Court has reviewed the uncontested factual evidence presented with the motion, and it is satisfied that plaintiff has met its burden. For one example, plaintiff shows that, after the judgment here, the companies made a series of same-day payments from Bay Area Public Safety to the common owner of the two corporations, which were immediately redeposited to Authority Patrol. The remainder of plaintiff's proof is equally convincing.

Authority Patrol has presented no contrary evidence and has filed no opposition.

18. 9:00 AM CASE NUMBER: N26-0647

CASE NAME: CLAIM OF:DEANNA CLARK

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C22-01852

CASE NAME: MANSOUR BOROUMAND VS. MOJGAN SHAHBAZI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWER TO FORM INTERROGATORY 17.1**

FILED BY: BOROUMAND, MANSOUR

TENTATIVE RULING:

Plaintiff moves to compel responses to two requests for admission, and (if necessary) to form interrogatory 17.1. Defendants have withdrawn all objections to the RFAs except that they are compound, which they are not. The motion is therefore **granted**. Defendants must serve amended responses to RFAs 7 and 8 by September 1, 2026, with square admissions or denials and no objections. If there are any denials, defendants must also respond without objection to form interrogatory 17.1.

The Court awards sanctions of \$1,000, payable by defendants' counsel to plaintiff's counsel within 30 days.

20. 9:01 AM CASE NUMBER: C23-02910

CASE NAME: JESUS TORRES VS. JORODA, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS DOCUMENT REQUEST SET 1**

FILED BY: JORODA, INC.

TENTATIVE RULING:

Defendant moves to compel further responses and production on two document requests. The motion is **denied**.

The problem here is that these are, in substance, interrogatories or deposition questions miscast as document requests. A request for production of documents requires that documents in the responding party's possession be produced. It does not require that the responding party go out and get documents he does not have; nor does it require that he catalog and explain each document. If plaintiff has produced the responsive documents he has, he has complied.

Request 1 seeks “the exact website page, heading, button, label, etc. Your screen reader could not use [on] Defendant’s website”. There is neither a showing nor an inference that plaintiff has physical copies of any such documents that he has not produced. What defendant really wants is a listing and explanation. That’s not the role of a document request.

Request 3 calls for “documents that prove you have a screen reader”, and details of the product. Plaintiff says, not implausibly, that he has no such documents – receipts, manuals, and so on. Defendant can explore that response at deposition if it likes, but “I don’t have any” means “I don’t have to produce any”. If what defendant really wants is identification of the screen reader plaintiff possesses and uses, a document request isn’t the right way to get that answer.

The Court declines to award sanctions. Although this motion is being denied, it does appear by inference that plaintiff is being less forthcoming than he should be about the details on which he rests his asserted case.

The Court further notes that although plaintiff criticizes defendant’s Separate Statement, plaintiff has filed no responsive Separate Statement as he was required to do.

21. 9:01 AM CASE NUMBER: MSC21-01963

CASE NAME: KNIGHT VS HONDA

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO**

FILED BY: KNIGHT, MELANIE

TENTATIVE RULING:

Plaintiff moves to compel production of extensive categories of documents concerning safety devices that defendant Honda incorporated into its Vezel model, which was marketed and sold only in Japan. The motion is **denied**.

This is a personal injury case, alleging that plaintiff was hit by a Honda while jaywalking. The claims against Honda center on the allegation that Honda’s vehicle lacked safety features, such as forward collision-avoidance devices. Plaintiff has adduced in discovery that at the time the vehicle was made and sold, Honda incorporated such safety devices in a similar model it was selling in Japan. Plaintiff has also received discovery about the safety technology used on other Honda models.

The substance of this motion was already raised and ruled on by Judge Mockler in a prior motion to compel, which was denied. Plaintiff argues that it now has “new information”, but it offers no convincing argument why that information overcomes the grounds for Judge Mockler’s denial. Moreover, plaintiff waited over a year to file this motion.

In any event, with or without Judge Mockler’s prior ruling, the Court views the present discovery sought as too burdensome and too far afield to warrant compelling discovery. Plaintiff wants to be able to prove at trial that Honda was capable of incorporating the disputed safety equipment in the model at issue, and that it understood the safety value of doing so. The point is a fair one for trial, but plaintiff has already got ample discovery responses (including the very deposition testimony it now

relies on) to seek to carry that point at trial. The bulky details of the incorporation into the Japanese model vehicle will add little if any further probative value.

Honda has not requested sanctions.

Courtroom Clerk's Session

22. 1:30 PM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

ISSUE CONFERENCE WITH SETTLEMENT MENTOR

FILED BY:

TENTATIVE RULING:

All parties and counsel to appear.

Law & Motion

Add On

23. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

TO BE RELIEVED AS COUNSEL RE: ATTORNEY DEVON M. TURTLE ANDERSON

FILED BY:

TENTATIVE RULING:

Devon Anderson and Skepsis Legal Solutions move to be relieved as counsel for Daniel Jensen. The motion is **granted**, but effective only after conducting today's settlement conference and any follow-on settlement proceedings.

A motion of this kind would typically call for an in-person, in-chambers confidential hearing to consider grounds for withdrawal, so as not to reveal any attorney-client confidences to other parties or the world in general. Here, however, both client and lawyers are in Idaho, and the client has stated his position in writing in a public filing. Accordingly, if this tentative ruling is contested, the Court will allow the attorneys and the client to appear by Zoom, with the caution that their statements and arguments will not be confidential. Mr. Jensen is deemed to have waived any privilege or confidentiality by telling his side of the attorney-client story publicly.

The law firm, quite properly, states its grounds for withdrawal in vague and general terms, stating that irreconcilable differences concerning the conduct of the defense make continued representation “no longer possible consistent with counsel’s ethical obligations” (which is sometimes code language for the client insisting on actions that the lawyers consider unethical). Mr. Jensen’s opposition and declaration do not take that on directly, but it is readily apparent from the content and tone of those documents that the attorney-client relationship is in poor repair indeed. Frankly, the Court does not see how it is likely that Jensen’s defense can be conducted advantageously in light of the obvious discord and distrust between client and attorney.

Moreover, Jensen himself states that Skepsis agreed to stay on as counsel only for the limited purpose of trying to settle, a limitation that Jensen apparently agreed to at the time -- hence the Court’s direction that Skepsis should see Jensen through this afternoon’s settlement conference.

Jensen points out that trial in this case is set for next month. However, Jensen is in default, and declined to authorize Skepsis to move for relief from that default. Hence, with or without an attorney, Jensen will not be allowed to participate in the trial anyway. Moreover, as the preceding paragraph shows, Skepsis’s continued representation to date has not included any undertaking to try the case. If Jensen is of the view that Skepsis is at fault in allowing him to fall into default (which his papers hint at but do not show), then he can sue Skepsis for malpractice; but it is not an appropriate remedy for him to force them to continue to represent him.